Citizenship

1. Citizens, aliens and single citizenship

- **Citizen:** full member of the State owing allegiance; **alien:** foreign national. Friendly/enemy alien is a wartime distinction; Article **22(1)–(2)** safeguards exclude enemy aliens and preventive-detention cases, not every constitutional protection.
- Citizens have **15, 16, 19 and 29** protections, voting/legislative eligibility and eligibility for specified constitutional offices: President, Vice-President, Governor, SC/HC judge, Attorney/Advocate General, subject to qualifications.
- **Article 30 caution:** minority educational rights are not worded simply as a citizen-only right; avoid treating the chapter's combined 29–30 label as their identical text. Many rights, including **14 and 21**, protect persons generally.
- Naturalised citizens can become **President of India** if qualified; the USA requires a **natural-born citizen**, a more precise term than merely born on US soil.
- **Single Indian citizenship; no separate State citizenship**, despite a federal polity. US national/State citizenship is a comparison; the textbook's claim of an equivalent Australian double citizenship is misleading.
- Responsibilities include respecting Constitution/Flag/Anthem and defending India. Tax duties arise under law and can apply to non-citizens too.
- Single citizenship supports fraternity/national integration, but does not eliminate all legally permissible regional distinctions or social divisions.

2. Residence and regional qualifications

- **16(3): Parliament**, not a State acting under this clause, may prescribe residence requirements for specified public employment. **Public Employment (Requirement as to Residence) Act 1957:** historical provisions for AP, Himachal, Manipur, Tripura; expired **1974**.
- **371D:** special arrangements for equitable opportunities/local cadres in **Andhra Pradesh and Telangana**; do not infer that every State may impose any domicile condition.
- **15:** residence is not one of the expressly listed grounds; resident preferences still require constitutional scrutiny, including equality. **19(5):** restrictions may protect Scheduled Tribe interests/general public.
- **Former J&K permanent-resident privileges:** employment, property, settlement, aid; **35A** inserted through the **1954 application order**. That regime is historical after the **2019 orders/reorganisation**; present domicile law is a different framework.

3. Citizenship at commencement: Part II

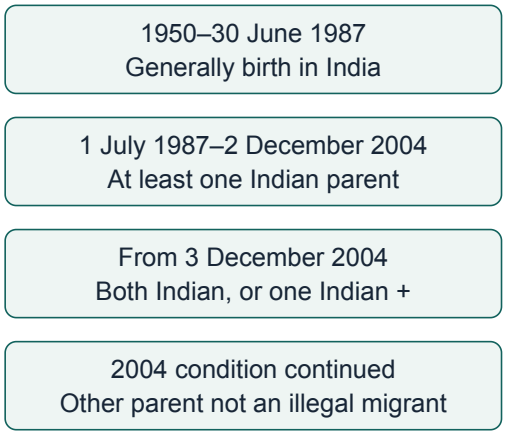
- **5:** domicile in India **plus** birth in India, either parent born in India, **or five years' ordinary residence** immediately before commencement.
- **6—Pakistan → India:** person/parent/grandparent born in undivided India; migration **before 19 July 1948:** ordinary residence since migration; **on/after that date:** registration before commencement, with **six months' residence before application**.

- **7—India → Pakistan after 1 March 1947:** generally excluded; return under a **permit for resettlement/permanent return** brings the specified registration route into play.
- **8—Indian origin abroad:** person/parent/grandparent born in undivided India; registration by Indian diplomatic/consular representative, before or after commencement.
- **9:** voluntary foreign citizenship excludes citizenship under the specified commencement provisions. **10:** continuance subject to parliamentary law. **11:** Parliament regulates acquisition, termination and other citizenship matters.
- These provisions mainly address **26 January 1950 commencement circumstances**; the **Citizenship Act 1955** governs subsequent acquisition/loss.

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4. Acquisition by birth: three date bands

- **26 January 1950–30 June 1987:** birth in India generally sufficient, subject to statutory exclusions.
- **1 July 1987–2 December 2004:** at least **one parent Indian** at birth.
- **From 3 December 2004: both parents Indian**, or **one Indian + other not an illegal migrant** at birth.
- Statutory exclusions include the specified **diplomatic-immunity** and **enemy-alien/occupation** cases. Do not state that every child of every foreign employee is excluded.



Birth rules depend on date and parental status; statutory exceptions apply.

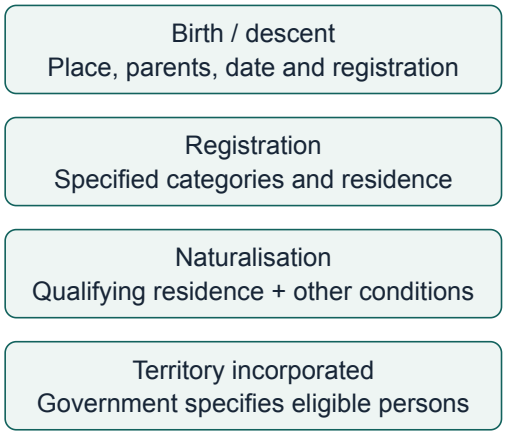
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5. Acquisition by descent: birth abroad

- **26 January 1950–9 December 1992: father Indian** at birth; additional registration/service conditions where father is citizen by descent only.
- **10 December 1992–2 December 2004: either parent Indian**; analogous conditions if the qualifying parent is citizen by descent only.
- **From 3 December 2004:** consular birth registration **within one year**, or later with Central Government permission; parents undertake that child **does not hold another country's passport**.
- A minor with Indian citizenship **by descent** and another nationality must renounce the other nationality **within six months of attaining full age**, or cease to be Indian under this provision.
- **Birth = place plus applicable parent/date conditions; descent = birth abroad plus parent/registration conditions**. Citizenship Act, sections 3–4

6. Registration, naturalisation and incorporation

- **Five modes:** birth, descent, registration, naturalisation, incorporation of territory.
- **Registration, section 5:** eligible non-illegal migrants, including Indian-origin residents (**7 years**), Indian-origin persons abroad, spouses of citizens (**7 years**), minor children of citizens, adults whose parents acquired citizenship through the specified registration/naturalisation routes, former Indian citizens/their qualifying children (**12 months**), and **OCI cardholder for 5 years + 12 months' ordinary residence**.
- The statutory seven-year calculation includes **12 months immediately preceding application + aggregate six years in the preceding eight years**; do not assume seven uninterrupted years in all cases. Marriage alone does not automatically confer citizenship.
- **Naturalisation, section 6/Third Schedule:** full age/capacity, not an illegal migrant; required foreign-nationality renunciation, good character, adequate knowledge of an **Eighth-Schedule language**, intention to reside/serve in prescribed capacities and qualifying residence/service.
- Ordinary naturalisation residence: **12 months immediately before application + aggregate 11 years in the preceding 14 years**, subject to statutory relaxations. For specified CAA communities/countries, the latter aggregate becomes **5 years**.
- Government may waive requirements for distinguished service to **science, philosophy, art, literature, world peace or human progress**. Oath of allegiance applies to acquisition under the relevant statutory routes; minor exceptions must be respected.
- **Incorporation:** Government specifies which persons become citizens when territory joins India and the effective date; e.g. **Citizenship (Pondicherry) Order 1962**.



Five statutory acquisition modes; special routes have additional rules.

7. Assam Accord: section 6A

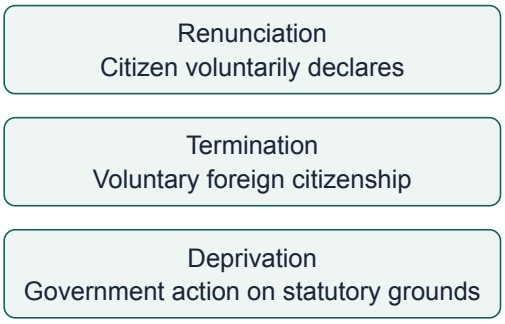
- **1985 amendment** inserted the special Assam provisions concerning eligible Indian-origin migrants from the specified territory now Bangladesh and continuous ordinary residence.
- **Before 1 January 1966:** deemed citizens from **1 January 1966**.
- **1 January 1966–24 March 1971:** detection as foreigner + registration; citizenship after **10 years from detection**. During the intervening period, prescribed citizen-like rights/obligations **except electoral-roll inclusion**.
- **On/after 25 March 1971:** not covered by this special citizenship route.
- **Supreme Court, 17 October 2024:** upheld section 6A's validity by **4:1**. Official judgment

8. CAA 2019 and implementation

- **Six communities:** Hindu, Sikh, Buddhist, Jain, Parsi, Christian. **Three countries:** Afghanistan, Bangladesh, Pakistan. Entry **on/before 31 December 2014**, with the required Central Government exemptions, brings eligible persons within the special framework.
- **2019 Act effective 10 January 2020; Rules notified 11 March 2024**. Application and prescribed eligibility verification remain necessary; not automatic citizenship on merely belonging to a community.
- **6B:** registration/naturalisation certificate; qualifying recipient deemed citizen from entry date; specified pending illegal-migration/citizenship proceedings abate **on conferment**, not simply on application.
- Exceptions: **Sixth-Schedule tribal areas of Assam, Meghalaya, Mizoram, Tripura** and **Inner Line areas** under the 1873 Regulation.
- Background: **2015 exemptions**, **2016 long-term-visa facilities**. Normal registration/naturalisation routes remain available to qualifying legal migrants of other religions/countries.
- **CAA entry cutoff remains 2014**; do not confuse it with later immigration-law exemptions governing stay. Official citizenship portal

9. Loss: renunciation, termination, deprivation

- **Renunciation, section 8:** voluntary declaration by full-age/capacity citizen; registration may be withheld during war. Minor children also cease citizenship, but may resume it **within one year after turning 18**.
- **Termination, section 9:** voluntary acquisition of foreign citizenship; war exception and statutory determination machinery apply.
- **Deprivation, section 10:** Government action concerning specified registered/naturalised citizens, with statutory procedure/public-good requirements; **not a general power to strip every citizen by birth**.
- Grounds: **fraud; disloyalty to Constitution; prohibited enemy dealings during war; imprisonment of at least 2 years within 5 years after registration/naturalisation; 7 years' continuous ordinary residence abroad**, subject to exemptions.
- Abroad-residence exceptions include prescribed **education, government/international-organisation service, or annual consular registration of intention to retain citizenship**.



Three loss mechanisms differ in trigger and procedure.

10. OCI: origin and eligibility

- **L.M. Singhvi diaspora committee:** appointed **September 2000**, report **January 2002**. **2003 amendment:** OCI framework and Commonwealth-citizenship provisions repealed; **2005:** expanded scheme.

- **PIO card scheme 2002; OCI scheme 2005; 2015 merger:** PIO scheme rescinded and existing cardholders deemed OCI from **9 January 2015**; name became **Overseas Citizen of India Cardholder**.
- **OCI is a statutory foreign-national status, not Indian or dual citizenship**. India does not generally permit simultaneous adult Indian/foreign citizenship.
- Eligible: qualifying former/commencement-eligible Indian citizen, person from territory incorporated after **15 August 1947**, eligible child/grandchild/great-grandchild, specified minors, and qualifying foreign spouse.
- Foreign-spouse route: registered marriage subsisting for **at least two years**, with prescribed clearance. Ineligible where person/parent/grandparent/great-grandparent is/was citizen of **Pakistan, Bangladesh or another notified country**.

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11. OCI benefits, limits and cancellation

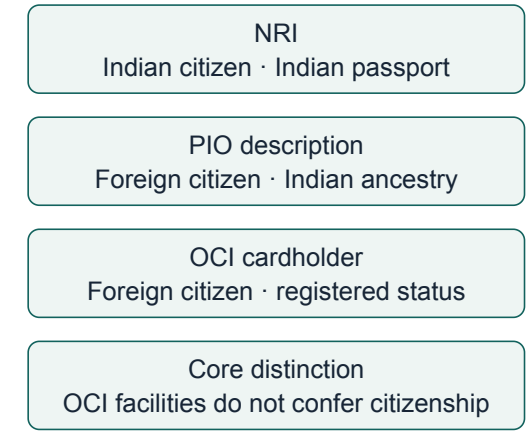
- **Multiple-entry lifelong visa; FRRO/FRO registration exemption** for length of stay, subject to applicable reporting conditions.
- Special permission for **research; missionary/Tabligh, mountaineering, journalism; specified foreign-mission internships/employment; protected/restricted/prohibited areas**.
- Indian-national parity for specified **domestic air fares and monument/museum/national-park/sanctuary entry fees**; NRI parity for specified **adoption, property and professional activities**, subject to sectoral law.
- Property parity excludes **agricultural land, farmhouses and plantations**. Specified professional practice: doctors/dentists/nurses/pharmacists, advocates, architects, chartered accountants; institutional faculty appointments are subject to applicable rules.
- **No vote, elected legislative membership, President/VP or SC/HC judgeship; no citizen's Article 16 entitlement**. Government employment only where specifically authorised.
- **2021 educational notification:** restricted relevant admissions to NRI/supernumerary routes; **Supreme Court protected pre-4 March 2021 OCI cardholders from retrospective withdrawal**. Avoid the book's blanket restriction without this distinction. Supreme Court, 2023
- Other economic/financial/educational fields: generally foreigner treatment unless a notification/FEMA rule provides otherwise. **Current OCI permissions/fees:** use official portal; the chapter's US$275/₹15,000 is a quoted tariff, not a timeless entitlement. Official OCI FAQ
- **OCI renunciation:** registration ends; associated foreign spouse/minor children's OCI status ends as prescribed.
- Cancellation grounds: fraud; constitutional disaffection; prohibited wartime enemy dealings; qualifying conviction; violation of specified law; sovereignty/security/friendly-relations/public-interest grounds; dissolution/qualifying remarriage in spouse-based registration. **Opportunity to be heard** required; notified-law grounds must be checked against applicable notifications.

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12. NRI, PIO and OCI: quick comparison

- **NRI:** Indian citizen ordinarily abroad; Indian passport; remains citizen; no Indian-entry visa, with electoral/other requirements governed by law.
- **PIO:** description of foreign citizen with Indian ancestry; foreign passport; ancestry alone confers no visa/right. Old **PIO card scheme** is distinct and merged into OCI.
- **OCI cardholder:** eligible foreign national with statutory registration; foreign passport + OCI; lifelong visa facilities, restricted rights; may apply for citizenship through **5-year OCI + 12-month residence** route.

- Ordinary PIO registration route may require **7-year residence**; OCI registration route is a different calculation. “Resident abroad” does not itself determine every tax/FEMA classification.



Citizenship, ancestry and OCI registration are different concepts.

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13. One-minute recall

- **Birth cutoffs: 1950 → 1987 → 2004. Descent: 1992 parent change; 2004 consular-registration rule.**
- **Acquisition 5; loss 3. OCI ≠ citizenship.**
- **Assam: 1966/1971; CAA: three countries, six communities, 2014 entry cutoff.**
- **Mains:** legal membership → equal citizenship/integration → constitutional commencement rules → statutory acquisition/loss → diaspora facilities with clear limits.